

TENTATIVE RULINGS

DEPARTMENT N17

Judge Craig L. Griffin

Date: June 8, 2026

Time: 2:00 PM

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1	Zambrano v. Eleganza Tiles, Inc.	Before the Court is plaintiff Fabian Zambrano's unopposed motion to set aside dismissal. As set forth below, the motion is GRANTED. The court has the discretion to relieve a party "upon any terms as may be just...from a judgment, dismissal, order or other proceeding taken against him or her through his or her mistake, inadvertence, surprise or excusable neglect." (Code of Civ. Proc. § 473, subd. (b).) Relief under section (b) may be based on an "attorney affidavit of fault" in which event relief is mandatory. Relief must be granted even where the default resulted from inexcusable neglect by defendant's attorney. (<i>Standard Microsystems Corp. v. Winbond Electronics Corp.</i> (2009) 179 Cal.App.4th 868, 897, disapproved on other grounds in <i>Even Zohar Const. & Remodeling, Inc. v. Bellaire Townhouses, LLC</i> (2015) 61 Cal.4th 830, 845.) Here, Plaintiff's counsel submitted a declaration stating that the failure to appear at the 10/24/25 hearing where the Court dismissed the action was based on his inability to establish internet connection while he was on a family vacation in Big Bear. (Cojocnean Decl. ¶¶ 7-8.) Plaintiff has shown entitlement to mandatory relief. The motion is therefore GRANTED. Plaintiff shall give notice of this ruling.

2	Lopez v. City of Orange	Before the Court is a motion for summary judgment or summary adjudication in the alternative filed by defendant Charter Communications (Defendant) on the complaint filed by plaintiff Refugio Lopez (Plaintiff). For the reasons set forth below the motion for summary judgment is GRANTED. A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) Once defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. (<i>Ibid.</i>) In ruling on a motion for summary judgment, the court must "consider all of the evidence" and all of the "inferences" reasonably drawn therefrom and must view the evidence and inferences "in the light most favorable to the opposing party." (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 843.) Plaintiff's evidentiary objections are OVERRULED. Nos. 1-4, 10-12 do not identify any specific evidence, and is thus procedurally improper. (Cal. Rules of Court, rule 3.1354(b).) With regard to nos. 5-9, declarants have sufficient personal knowledge of the facts stated in their declaration and/or are not hearsay. It is well-settled that a property owner is not liable for damages caused by a minor, trivial or insignificant defect on his property. (<i>Cadam v. Somerset Gardens Townhouse HOA</i> (2011) 200 Cal.App.4th 383, 388.) This principle is sometimes referred to as the "trivial defect defense," although it is not an affirmative defense but an aspect of duty that a plaintiff must plead and prove. (<i>Ibid.</i>) Persons who maintain walkways – whether public or private – are not required to maintain them in absolutely perfect condition. (<i>Ibid.</i>) What constitutes a trivial defect may be a question of law where reasonable minds can reach but one conclusion. (<i>Id.</i> at 388-389; <i>Caloroso v. Hathaway</i> (2004) 122 Cal.App.4th 922, 929.) In determining whether a defect is trivial as a matter of law, the court considers the size of the depression as well as all of the facts surrounding the accident which may have rendered the defect more dangerous than it appears, including the "the intrinsic nature and quality of the defect to see if, for example, it consists of the mere nonalignment of two horizontal slabs or whether it consists of a jagged and deep hole. The court should also look at other factors such as whether the accident occurred at night in an unlighted area. Furthermore, the court should see if there is any evidence that other persons have been injured on this same defect. (<i>Kasparian v. AvalonBay Communities, Inc.</i> (2007) 156 Cal.App.4th 11, 27 [internal quotes and citations omitted]; see also <i>Caloroso v. Hathaway</i> (2004) 122 Cal.App.4th 922, 927.) Although size is just one of the relevant factors, generally, differentials ranging from three-quarters of an inch to one and one-half inches have been held trivial as a matter of law. (<i>Huckey</i>, 37 Cal.App.5th at 1107 [finding trivial, height differential ranging from
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9/16 of an inch to one inch]; see also *Fielder v. City of Glendale* (1977) 71 Cal.App.3d 719, 724, fn. 4 [citing cases where height differentials were one inch and under “were minor and trivial as a matter of law”].) But “when the size of the depression begins to stretch beyond one inch, the courts have been reluctant to find that the defect is not dangerous as a matter of law,” i.e., that it is not minor or trivial. (*Fielder v. City of Glendale, supra*, 71 Cal.App.3d at 726.) There is no firmly fixed “arbitrary measurement in inches below which a defect is trivial as a matter of law and above which it becomes a question of fact whether or not the defect is dangerous.” (*Beck v. City of Palo Alto* (1957) 150 Cal.App.2d 39, 43.) This is because a “court should *not* rely solely upon the size of the defect ... although the defect’s size ‘may be one of the most relevant factors’ to the court’s decision.” (*Huckey*, 37 Cal.App.5th at 1105, quoting *Fielder v. City of Glendale* (1977) 71 Cal.App.3d 719, 734.) “Instead, the court should determine whether there existed any circumstances surrounding the accident which might have rendered the defect more dangerous than its mere abstract depth would indicate.” (*Fielder*, 71 Cal.App.3d at 734.)

Here, Defendant produced evidence the raised utility access panel cover on which Plaintiff tripped was lifted approximately 1 ¼ inches. (Defendant’s Separate Statement of Undisputed Material Fact (“DSS”) 5.) The photos taken by Plaintiff shortly after the accident show it was sunny at the time of the accident and do not show any visual obstructions, debris, or lighting coverage or obscuring the subject condition. (DSS 4.) Defendant also produced Plaintiff’s discovery responses, which do not identify any obstructions to her vision or debris or other objects covering the subject utility access panel cover. (DSS 3.) Defendant also produced evidence it has never received any notice of any issues reported with the utility access panel cover prior to the incident. (DSS 12, 13.) Based on circumstances of the incident and the description of the alleged defect, Defendant met its initial burden that the defect is trivial as a matter of law, and the burden shifted to Plaintiff.

However, Plaintiff failed to produce sufficient evidence showing a triable issue of fact. Plaintiff concedes the incident occurred near 1611 E. Katella Avenue in Orange on April 14, 2024 in “the middle of the day,” with the weather “clear” with “mid-day sunlight.” (Lopez Decl. ¶¶ 3, 5.) In her declaration, Plaintiff asserts aggravating factors include metal-on-concrete transition, multiple adjacent covers, visible separation between cover frame and concrete, location at a busy commercial intersection and absence of warnings or markings. (Response to DSS 3; see also Lopez Decl. ¶¶ 4, 7.)

By contrast to Plaintiff’s new facts stated in her declaration, Plaintiff described the dangerous condition in her discovery responses as simply: “The opening of the electrical box was slightly raised” without any aggravating factors. (Defendant’s Appendix of Evidence, Ex. 3 - responses to interrogatory nos. 20-22.) A plaintiff may not create a triable issue contradicting prior discovery responses. (*Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 592-593; *D’Amico v. Board of Medical Examiners* (1974) 11 Cal.3d 1, 21; *Visueta v. General Motors Corp.* (1991) 234 Cal.App.3d 1609, 1613

		["Admissions or concessions made during the course of discovery govern and control over contrary declarations lodged at a hearing on a motion for summary judgment"].) But even if the new facts in Plaintiff's declaration do not contradict prior discovery responses, summary judgment based on an inspection of photographs of the alleged defect is proper only where the reviewing court concludes that reasonable minds cannot differ regarding the depiction of the alleged defect and the surrounding environs. (<i>Kasparian v. AvalonBay Communities, Inc.</i>, <i>supra</i>, 156 Cal.App.4th at 15.) The photographs produced by Plaintiff show there are no broken pieces or jagged edges on or near the utility box, only that there is a height differential of 1 ¼ inches between the two lids covering the utility box. This is no different than a height differential of two slabs of concrete on a sidewalk. The fact there is a metal-on-concrete transition appears to be a distinction without a difference. Without no aggravating factors as can be seen in the photos, the alleged defect is trivial as a matter of law. (See e.g., <i>Beck v. City of Palo Alto</i> (1957) 150 Cal.App.2d 39 [holding that defect in sidewalk caused by one slab of concrete being pushed higher than contiguous slab with a difference in elevation up to one- and seven-eighths-inch, without any aggravating factors, is trivial as a matter of law].) Plaintiff failed to meet her burden showing a triable issue of fact on the trivial defect defense. The motion for summary judgment is therefore GRANTED. Counsel for Defendant shall give notice of this ruling.
3	Dotts v. Hyundai Motor America	O/C
4	McCormick v. Panacea Aesthetics & Wellness, Inc.	The unopposed motion to be relieved as counsel of record for defendant Panacea Aesthetics & Wellness, Inc. filed by Kerri N. Kramer, Esq. of Kring & Associates, APC is GRANTED. Moving counsel has complied with the procedural requirements of C.R.C. 3.1362. The court finds good cause to grant the relief requested on the merits. The motion is thus GRANTED. The order granting relief is effective upon filing of a proof of service of the signed order on the client. A corporation must be represented in court by an attorney. (<i>Gutierrez v. G & M Oil Co., Inc.</i> (2010) 184 Cal.App.4th 551, 564.) As such, in order to proceed with this matter, defendant Panacea Aesthetics & Wellness, Inc. is ordered to obtain new counsel within a reasonable time. (<i>CLD Constr., Inc. v. City of San Ramon</i> (2004) 120 Cal.App.4th 1141, 1150.) An Order to Show Cause re: Retention of Counsel is scheduled for September 11, 2026, at 9:30 a.m.. Moving counsel shall give notice of this ruling.

5	Rezai vs. Monfared	Plaintiffs Ramin Monfared and Negin Almassi's ("Plaintiffs") Motion for Entry of Judgment against defendants Zara Rezai a/k/a Zahra Rezai, Andy Andalibian, Greg M Tonkinson, individually and as alleged successor or Trustee of the Coast Highway Ramfared trust, dated November 28, 2022, Alliance Construction Co., and New Dawn Jenkins LLC ("Defendants" together) is GRANTED. The parties entered into a valid and binding settlement agreement which required Defendants to sell real property and put \$450,000 into escrow for payments to Plaintiffs. (Jafari Decl. ¶¶ 2-5, Ex. 1.) Defendants violated the terms of the agreement and failed to take the actions required. Defendants were notified of the default, but refused or failed to cure it. Defendants were also served notice of the motion and hearing. Pursuant to Civ. Proc. Code § 664.6 and the terms of the settlement agreement between the parties, the court will grant the motion and enter judgment in the total amount of \$450,000.00, plus 10% annual interest from the date entry of judgment is made. While the agreement also permits recovery of attorney fees and costs, Plaintiffs will need to seek those under a separate motion as there was no evidence of attorney fees and costs in the present motion. Plaintiffs are also directed to file a proposed judgment for the court to review and sign. Plaintiffs to give notice.
6	Gibas vs. Barua	Before the court is an unopposed motion filed by attorneys Rye Mhtar of Buffington Law Firm, P.C. ("Attorneys"), requesting to be relieved as counsel of record for plaintiffs Donald Joseph Gibas and Billie Jo Gibas, Both in Their Individual Capacity and As Trustees of the Gibas Family Revocable Living Trust Dated July 5, ("Clients" together). The motion is GRANTED. Attorneys have complied with the requirements of California Rule of Court 3.1362, and filed and served forms MC-051, MC-052, and MC-053 on Clients and on the defendant. The court finds Attorneys have provided a valid and sufficient reason for requesting to be relieved as counsel for Clients. As such, the court GRANTS the motion. The order relieving counsel shall not be effective until Attorneys file with the court a proof of service showing the signed order granting the motion has been served on Clients. Until such time, Attorneys shall remain counsel of record. Case Management Conference is CONTINUED to October 9, 2026, at 9:30 a.m. Attorneys are ordered to give notice of this ruling.
7	Schutzman v. Stern	Before the Court is a special motion to strike (anti-SLAPP) brought by defendants Oren Stern and Amit Louzon as to the first cause of

action for Defamation in the complaint filed by Plaintiffs Scott Schutzman and Law Offices of Scott E. Schutzman.

The motion by Oren Stern is **GRANTED**, as set forth herein.

Because the first cause of action for Defamation is not asserted against Amit Louzon, the motion is MOOT as to Louzon.

The within action arises from a January 28, 2025 Google review posted by Stern in which he said the following about Scott Schutzman: "Absolutely the most unprofessional lawyer I've ever dealt with. Completely unreliable, unresponsive, and lacking basic professionalism. Do yourself a huge favor—save your time, money, and sanity by finding someone else. Avoid at all costs!" (See Exhibit A to the Complaint)

Code of Civil Procedure section 425.16 permits a special motion to strike Strategic Litigation Against Public Participation ("SLAPP") lawsuits. A SLAPP suit is "a meritless suit filed primarily to chill the defendant's exercise of First Amendment rights." (Finton Construction, Inc. v. Bidna & Keys, APLC (2015) 238 Cal.App.4th 200, 208.) The purpose of the anti-SLAPP law is "not [to] insulate defendants from any liability for claims arising from the protected rights of petition or speech. It only provides a procedure for weeding out, at an early stage, meritless claims arising from protected activity." (Baral v. Schnitt (2016) 1 Cal.5th 376, 384.)

The trial court engages in a two-step process to determine whether a special motion to strike should be granted. (CCP §425.16(b)(1); Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1065.) First, "the moving defendant bears the burden of establishing that the challenged allegations or claims 'aris[e] from' protected activity in which the defendant has engaged." (Bonni v. St. Joseph Health System, supra, 11 Cal.5th at p. 1065 [quoting Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1061].)

"A claim arises from protected activity when that activity underlies or forms the basis for the claim." (Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1062.) "Critically, 'the defendant's act underlying the plaintiff's cause of action must itself have been an act in furtherance of the right of petition or free speech.' [Citations.]" (Id. at pp. 1062-1063.) Here, the Defamation cause of action is based on the Google review.

"Web sites accessible to the public ... are public forums for purposes of the anti-SLAPP statute." (Barrett v. Rosenthal (2006) 40 Cal.4th 33, 41, fn. 4; see also, Demetriades v. Yelp, Inc. (2014) 228 Cal.App.4th 294, 310 - "[. . .] Yelp's Web site is a public forum and contains matters of public concern in its reviews of restaurants and other businesses. . .")

"[A]lthough 'not every Web site post involves a public issue' (Citation), consumer information that goes beyond a particular interaction between the parties and implicates matters of public

concern that can affect many people is generally deemed to involve an issue of public interest for purposes of the anti-SLAPP statute.” (Wong v. Jing (2010) 189 Cal.App.4th 1354, 1366) When determining whether the issue is a matter of public interest, the court construes the statute broadly. (Nygrd, Inc. v. Uusi-Kerttula (2008) 159 Cal.App.4th 1027, 1039)

Here, the Google review was a warning by Stern to the public not to use Schutzman as an attorney. Selecting an attorney is not always an easy task. Providing this consumer protection information affects a large number of persons and “generally is viewed as information concerning a matter of public interest.” (Wilbanks v. Wolk (2004) 121 Cal. App. 4th 883, 898.) Indeed, Plaintiff’s complaint alleges that “[t]he Google review was seen and read . . . by thousands of potential clients.” Complaint at ¶ 13.

Construing “public interest” broadly, the Court finds the Google review addresses a matter of public interest and that Stern has met his burden under prong one.

Once Defendant has met her burden of showing the causes of action arise from protected activity, Plaintiffs have the burden of establishing a probability of success on the merits with respect to those claims. (City of Cotati v. Cashman (2002) 29 Cal.4th 69, 73)

Here, the Google Review stated that Schutzman was unprofessional, unreliable and unresponsive. “The ultimate question is whether a reasonable trier of fact could conclude that the published statements imply a provably false factual assertion. (Citation) As we found in Weller v. American Broadcasting Companies, Inc. (1991) 232 Cal.App.3d 991, the court ‘must determine whether the statements that form the basis of a defamation claim: (1) expressly or impliedly assert a fact that is susceptible to being proved false; and (2) whether the language and tenor is such that it cannot ‘reasonably [be] interpreted as stating actual facts.’ ” (Citation)” (Wilbanks v. Wolk (2004) 121 Cal. App. 4th 883, 902)

In the opposition, plaintiff has failed to show the three statements (unprofessional, unreliable and unresponsive) are provably false. The statements express Stern’s opinion. Stern expresses his opinion in the context of those attorneys he has “dealt with.” It is not uncommon for people to have different expectations for their attorneys. For example, a person might consider an attorney who takes five days to respond to an email to be unresponsive and unreliable and therefore unprofessional. On the other hand, a different person might find such to be a prompt and expected timeframe for response by a busy lawyer.

Schutzman argues that “Stern received all the remedy he could possibly receive without alleging alter ego or doing extensive discovery.” (Opp. at 6:15-16) However, Stern did not say in the review he did not get the best available result. Instead, Stern expressed his opinion that his interactions with Schutzman were unprofessional, unreliable and unresponsive.

		Accordingly, the Court finds Schutzman has failed to meet his burden to show the statements were provably false as opposed to Stern's mere opinions. Defendant's request for judicial notice is GRANTED, as to the existence of the documents. (Evid. Code §452(d).) Plaintiff's objection to paragraph 11 of Stern's declaration is SUSTAINED. The remainder of plaintiff's objections are OVERRULED. For the foregoing reasons, the motion is GRANTED. Case Management Conference is CONTINUED to October 9, 2026, at 9:30 a.m. Defendant Stern shall give notice of this ruling.
8	FFC Mortgage Corp. v. Consumer Tax Advocate, LLC.	Before the Court is a demurrer by Consumer Tax Advocate LLC (CTA), Garrett Holdridge and Robert Mullen to plaintiff FFC Mortgage Corp.'s (FFC) second amended complaint (SAC). The demurrer is OVERRULED as to CTA and Holdridge and SUSTAINED as to Mullen, without leave to amend, as set forth herein. The role of a demurrer is "to test the legal sufficiency of a complaint." (<i>Donabedian v. Mercury Ins. Co.</i> (2004) 116 Cal.App.4th 968, 994, citations omitted.) A demurrer challenges the defects appearing on the face of the pleading or from other matters properly subject to judicial notice. (See <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-1405.) Questions of fact cannot be decided on demurrer. (<i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) <u>Intentional Misrepresentation – 2nd cause of action as to CTA and Holdridge</u> The elements of a fraud cause of action are: "(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage. [Citation.]" (<i>Small v. Fritz Companies, Inc.</i> (2003) 30 Cal.4th 167, 173, internal quotation marks omitted.) "Fraud allegations 'involve a serious attack on character' and therefore are pleaded with specificity. [Citation.] General and conclusory allegations are insufficient. [Citation.] The particularity requirement demands that a plaintiff plead facts which show how, when, where, to whom, and by what means the representations were tendered. [Citation.]" (<i>Cansino v. Bank of Am.</i> (2014) 224 Cal.App.4th 1462, 1469.)

In the SAC at paras. 37 & 38, the plaintiff identifies two misrepresentations upon which the fraud cause of action is based: "37. From about September 2022 through about the end of 2023, CTA through Holdridge represented to O'Bryan that CTA would diligently seek the approval of the assignment of FFC's Sublease to CTA. 38. Throughout the time CTA maintained its business operation at the Premises, Holdridge assured O'Bryan that CTA would meet its obligations under the Affiliate Agreement even if CTA might move its operations to a different location." Plaintiff further alleges at paras. 21 and 25 that Holdridge assured plaintiff CTA would cover the rent through the end of the term. The Court finds the misrepresentations sufficiently pled for purposes of demurrer.

As to the reliance element, plaintiff alleges it did not undertake to find another tenant based on the representations by the defendants. (See SAC ¶43 – plaintiff "justifiably relied" by "not undertaking attempts to look for another tenant for the Premises earlier as Holdridge indicated that CTA would honor the rent payment obligation until the end of the Term.") The Court finds this allegation of reliance sufficient at this stage.

As to damages, Plaintiff alleges it "suffered damages in excess of the minimum jurisdictional limit of this Court, totaling at least \$65,000 in compensatory damages alone—the sum due for the rent unpaid under the Affiliate Agreement." (SAC ¶45) The foregoing is a sufficient allegation of damages to get past demurrer.

Accordingly, the demurrer by CTA and Holdridge is **OVERRULED** as to the 2nd cause of action for intentional misrepresentation.

Intentional Misrepresentation – 2nd cause of action as to Robert Mullen

In the Court's 11/10/25 Minute Order, the demurrer by Mullen was sustained because there were no allegations of a fraudulent statement by Mullen. The SAC again fails to assert a specific misrepresentation made by Mullen or the details relating thereto.

In the opposition, FFC argues that paragraph 13, in the section of the SAC titled "The Affiliate Agreement," alleges the misrepresentation by Mullen. However, this paragraph does not identify a statement by Mullen.

Accordingly, the demurrer by Mullen to the 2nd cause of action for Intentional Misrepresentation is **SUSTAINED**.

Because this is the second time the Court has considered this matter, and no misrepresentation has been identified, and because plaintiff has not identified any facts in the opposition which might be added to a future pleading, the demurrer as to Mullen is **SUSTAINED WITHOUT LEAVE TO AMEND**.

Negligent Misrepresentation – 3rd cause of action as to CTA and Holdridge

		To state a Cause of Action for Negligent Misrepresentation, plaintiffs must plead the following elements: "(1) a false statement of a material fact that the defendant honestly believes to be true, but made without reasonable grounds for such belief, (2) made with the intent to induce reliance, (3) reasonable reliance on the statement, and (4) damages, Defendants had no reasonable grounds for believing the representation was true when they made it." (<i>Century Sur. Co. v. Crosby Ins., Inc.</i> (2004) 124 Cal.App.4th 116, 129.) For the same reasons discussed above, the Court finds the cause of action for Negligent Misrepresentation sufficiently pled. Accordingly, the demurrer to the 3rd cause of action is OVERRULED. Defendants Consumer Tax Advocate LLC and Garrett Holdridge are ORDERED to file their answer to the SAC within 10 days. Case Management Conference is CONTINUED to October 9, 2026, at 9:30 a.m. Mullen is ordered to give notice.
9	Daneshmand v. Tareen	The motion to compel arbitration filed by defendant Ashley Bolduc (Bolduc) is DENIED. As an initial matter, the Court notes the opposition brief filed by plaintiff Sharone Daneshmand (Plaintiff) is 19 pages and thus exceeds the page limit requirements set forth in CRC rule 3.1113(d). Plaintiff is admonished to abide by the page limit rules for all future filings. A party seeking to compel arbitration pursuant to Code of Civil Procedure section 1281.2 "has the burden of proving the existence of a valid arbitration clause and the dispute is covered by the agreement." (<i>Larian v. Larian</i> (2004) 123 Cal.App.4th 751, 760.) Bolduc seeks to compel arbitration of the sole cause of action for aiding and abetting breach of fiduciary duty asserted against her by Plaintiff based on the arbitration clause contained in the Engagement Agreement between Bolduc's law firm, Cummins & White, LLP, on the one hand, and defendants Ammar Tareen (Tareen) and Shield Home Loans, Inc. (Shield), on the other. (See Bolduc Decl., ¶ 2 and Ex. 1.) As Bolduc acknowledges, Plaintiff is a non-signatory to the Engagement Agreement. Bolduc argues Plaintiff should nonetheless be compelled to arbitrate his claims against Bolduc pursuant to the arbitration clause in the Engagement Agreement based on the doctrines of equitable estoppel and third-party beneficiary status. As an initial matter, it is not clearly shown that the controversy at issue in this lawsuit falls within the scope of the arbitration clause. The arbitration clause states that "<u>any dispute concerning the rights of any of the parties hereto</u>" will be decided by arbitration. (Engagement Agreement ¶ 9.A.) This action concerns the rights of

Plaintiff as an individual. It does not appear Plaintiff is attempting to assert derivative claims concerning the rights of Shield. Bolduc fails to adequately explain how, given Plaintiff is not a party to the Engagement Agreement, the claims in this action – which concern *Plaintiff's* rights – can be deemed to be a dispute concerning the rights of the parties to the Engagement Agreement.

The Court also finds Bolduc failed to show Plaintiff should be compelled to arbitrate under a theory of equitable estoppel or third-party beneficiary status.

Equitable Estoppel

Bolduc argues when a corporate officer such as Plaintiff asserts claims against corporate counsel that rely on the attorney's engagement agreement, equitable estoppel prevents the officer from avoiding the arbitration clause contained in that same agreement.

Bolduc cites *Rowe v. Exline* (2007) 153 Cal.App.4th 1276 and *Goldman v. KPMG, LLP* (2009) 173 Cal.App.4th 209 in support of her equitable estoppel argument. In *Rowe*, the court of appeal held equitable estoppel required a former corporate officer to arbitrate his claims against the non-signatory directors pursuant to an arbitration clause in a Confidential Settlement Agreement and General Release the former officer signed with the corporation, where the former officer's claims "rely upon, make reference to, presume the existence of, and are intertwined with the Agreement." (*Rowe*, supra, at p. 1287.) The court of appeal noted the former officer's claims sought recovery of \$175,000 owed under the Agreement and it was specifically alleged that the causes of action were brought pursuant to the Agreement. (See *Ibid.*)

In *Goldman*, the court of appeal found equitable estoppel inapplicable to claims brought by investors, who were signatories to operating agreements containing arbitration clauses, against nonsignatory corporate counsel where the allegations against corporate counsel were not "founded in or bound up with the terms or obligations in the operating agreements." (*Goldman*, supra, at p. 230.) The court held that "the *sine qua non* for application of equitable estoppel as the basis for allowing a nonsignatory to enforce an arbitration clause is that the claims the plaintiff asserts against the nonsignatory must be dependent upon, or founded in and inextricably intertwined with, the underlying contractual obligations of the agreement containing the arbitration clause." (*Id.* at p. 217-218.)

As an initial matter, the procedural posture of this case differs from Bolduc's cited cases. Here, we have a non-signatory plaintiff suing a signatory defendant with the signatory defendant attempting to compel the non-signatory plaintiff to arbitration. *Rowe* and *Goldman* involved the reverse situation – i.e., a signatory plaintiff suing a non-signatory defendant with the non-signatory defendant attempting to invoke the arbitration agreement signed by the

plaintiff. Bolduc has not clearly shown the rules articulated in these cases should apply to the instant matter.

In addition, Plaintiff's claim against Bolduc for aiding and abetting breach of fiduciary duty does not appear to be dependent upon, or founded in and inextricably intertwined with, the underlying contractual obligations of the Engagement Agreement. Although Plaintiff alleges in the general allegations section of the Complaint that Bolduc breached her professional duty of care by failing to properly advise Plaintiff, Plaintiff does not make a claim for professional negligence based on said allegation. Rather, Plaintiff asserts a claim for aiding and abetting breach of fiduciary duty based on allegations Bolduc had actual knowledge of Tareen's alleged misrepresentations concerning the necessity of executing the Stock Redemption Agreement, and Bolduc "substantially assisted and encouraged Tareen's execution of the Stock Redemption Agreement under fraudulent circumstances." (Compl., ¶ 74.) Plaintiff alleges "[a]s a direct and proximate result of Bolduc's aiding and abetting of Tareen's wrongful conduct, Plaintiff has suffered damages." (Compl., ¶ 76.)

Plaintiff is not claiming, for instance, that he was damaged by Bolduc's negligent drafting of the Stock Redemption Agreement, nor is he seeking to vindicate any rights or obligations under the Engagement Agreement. He is alleging he was damaged by Bolduc's aiding and abetting Tareen's wrongful conduct. As Plaintiff argues, his claims against Bolduc would be fully viable had no written Engagement Agreement existed between the parties. The Court thus finds Plaintiff's claim against Bolduc is not founded in and inextricably intertwined with the Engagement Agreement.

Third Party Beneficiary

Bolduc argues because Plaintiff, as an owner and officer of Shield, received financial and professional benefits from Bolduc's corporate counsel services, Plaintiff is a third-party beneficiary of the Engagement Agreement and should thus be compelled to arbitrate pursuant to the arbitration clause in said agreement.

"[C]ourts have compelled nonsignatory officers and employees to arbitrate claims alleged against them in their individual capacities even if they did not sign an arbitration agreement, or signed only as representatives of their employers or principals, where the officer or employee personally benefitted from the underlying contract." (*Cohen v. TNP 2008 Participating Notes Program, LLC* (2019) 31 Cal.App.5th 840, 860-861; see also, *RN Solution, Inc. v. Catholic Healthcare West* (2008) 165 Cal.App.4th 1511, 1520 [finding corporate officer who signed an arbitration agreement only in her official capacity "benefitted financially and professionally" from the agreement as alleged in her complaint and was thus bound by the arbitration agreement as a third-party beneficiary].)

Here, there is insufficient evidence presented showing Plaintiff personally benefited from the Engagement Agreement. First, Plaintiff did not sign or negotiate the Engagement Agreement. (Daneshmand

		Decl., ¶ 5.) Second, as shown by the allegations in the Complaint, Plaintiff was actually harmed by the Stock Redemption Agreement drafted by Bolduc in that the Stock Redemption Agreement was the instrument which allegedly stripped Plaintiff of his ownership rights in Shield. Bolduc fails to show how, under these circumstances, it can be said Plaintiff personally benefitted from the Engagement Agreement. Furthermore, mere incidental benefit to Plaintiff, as an owner and officer of Shield, is insufficient. Acceptance of such position "would be tantamount to a conclusion that every officer who signs a contract in his representative capacity is a third party beneficiary of that contract," which is not the law. (See <i>Benasra v. Marciano</i> (2001) 92 Cal.App.4th 987, 992.) Based on the foregoing, the motion is DENIED. Counsel for Plaintiff shall give notice.
10	Tarakji v. Secure One Capital Corp.	O/C
11	Baldwin v. Hyundai Motor America	Before the Court at present are the Demurrer and Motion to Strike filed on 12/23/25 by Defendant Hyundai Motor America ("Defendant"), as to the First Amended Complaint ("FAC") filed by Plaintiffs Catherine Baldwin and Terry Baldwin ("Plaintiffs") on 11/25/25. The Demurrer is SUSTAINED on the Fourth and Fifth Causes of Action (each a "COA") with 20 days leave to amend, but otherwise OVERRULED. The Court does not find the six-year statute of repose under § 871.21(b) to apply here. "[A] statute shortening the period of limitations cannot be applied retroactively to wipe out an accrued cause of action that is not barred by the then applicable statute of limitations" (<i>Niagara Fire Ins. Co. v. Cole</i> (1965) 235 Cal.App.2d 40, 43.) Thus, "retrospective application of a shortened limitations period is permissible provided the party has a reasonable time to avail himself of his remedy before the statute cuts off his right." (<i>Aronson v. Superior Court</i> (1987) 191 Cal.App.3d 294, 297–298.) The statute of limitations and repose embodied in § 871.21 became effective on January 1, 2025. By that time, almost six years had elapsed since Plaintiffs' purchase of the vehicle "on or around" 4/10/19. (FAC ¶ 6.) Plaintiffs' rights would have been almost immediately cut off if § 871.21 were applied in this context. The Demurrer as to COAs 1–4 on that basis is OVERRULED. However, Defendant has also demurred to COA 4 based on Comm. Code §2725. The statute of limitations for an implied warranty claim is four years pursuant to Comm. Code § 2725. (<i>Mexia v. Rinker Boat Co., Inc.</i> (2009) 174 Cal.App.4th 1297, 1306.) Plaintiffs assert that tolling applies here as they did not discover the "latent defects" at issue until "shortly before filing the Complaint" as they had "continued to experience symptoms of the Vehicle's defects after Defendant's unsuccessful attempts to repair it and or representations the Vehicle was working as designed." (FAC ¶¶ 26,

		27, 32.) But those are merely conclusory assertions lacking factual specificity. Where a pleading shows on its face that a claim would otherwise be time-barred, the burden is on the plaintiff to state specific facts to show delayed discovery: conclusory allegations will not withstand demurrer. (<i>Carrillo v. County of Santa Clara</i> (2023) 89 Cal.App.5th 227, 234.) The FAC does not meet that standard here. The FAC fails to articulate what the specific defect is, and when and how that was discovered by Plaintiff. The Demurrer as to COA 4 is SUSTAINED on this ground. For COA 5, Defendant’s argument under the economic loss rule (the “ELR”) fails here. <i>Rattagan</i> did not address claims of fraudulent inducement by concealment in the Song-Beverly context. (<i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, 41, fn. 12.) In contrast, <i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal.App.5th 828 does address such claims in this context. After <i>Rattagan</i> was decided, review of <i>Dhital</i> was dismissed. <i>Dhital</i> thus controls here. Under <i>Dhital</i>, fraudulent inducement by concealment claims are not barred by the ELR. (Id. at 843.) The Demurrer, to the extent it is based on the ELR, is OVERRULED. However, the Demurrer as to COA 5 is SUSTAINED for lack of adequate specificity. Plaintiffs vaguely allege that “Plaintiffs purchased the Subject Vehicle equipped with HYUNDAI’s defective 6-speed transmission,” which “can result in” various problems, but fail to allege what specific problems their vehicle experienced, and when. (FAC ¶¶ 64-66.) Generic claims of defects, without more, will not suffice to state the claim, as “[t]he very existence of a warranty presupposes that some defects may occur.” (<i>Santana v. FCA US, LLC</i> (2020) 56 Cal.App.5th 334, 345.) Greater specificity as to this specific vehicle and the basis for the fraud claim is required. The Demurrer is SUSTAINED on COA 5 on this ground. For COAs 4 and 5, Plaintiffs are granted 20 days leave to amend. However, continued leave to amend should not be presumed: Plaintiffs should ensure that any further amendment fully articulates the factual basis for each claim, including the basis for their tolling claim. In light of the foregoing, the Motion to Strike is MOOT. Case Management Conference is CONTINUED to October 9, 2026, at 9:30 a.m. Defendant is to give notice of these rulings.
12	Rhodes vs. Hartford Insurance Group Inc.	A) Demurrer The demurrer filed by defendants Hartford Insurance Group Inc. and Trumbull Insurance Company (“Defendants” together) against the First Amended Complaint (“FAC”) filed by pro per plaintiffs Emerson Rhodes and Nancy Rhodes (“Plaintiffs” together) is SUSTAINED, with 20 days leave to amend.

Defendants demurred to all four causes of action ("COA") on the basis they failed to state sufficient facts to constitute a COA. (Civ. Proc. Code § 430.10(e).)

a) COA No. 1 – Unfair or Deceptive Acts or Practices

"The California Unfair Competition Law ["UCL"] ([Bus. & Prof. Code] § 17200 et seq.) defines "unfair competition" as "any unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising." (Graham v. Bank of America, N.A. (2014) 226 Cal.App.4th 594, 609.)

"In contrast to its limited remedies, the unfair competition law's scope is broad. The unfair competition law's scope is broad. Unlike the Unfair Practices Act, it does not proscribe specific practices. Rather, as relevant here, it defines "unfair competition" to include "any unlawful, unfair or fraudulent business act or practice." [Citation.] Its coverage is "sweeping, embracing ' anything that can properly be called a business practice and that at the same time is forbidden by law.' " [Citations.] It governs "anti-competitive business practices" as well as injuries to consumers, and has as a major purpose "the preservation of fair business competition." [Citations.] By proscribing "any unlawful" business practice, "section 17200 'borrows' violations of other laws and treats them as unlawful practices" that the unfair competition law makes independently actionable. [Citations.] [¶] However, the law does more than just borrow. The statutory language referring to "any unlawful, unfair or fraudulent" practice (italics added) makes clear that a practice may be deemed unfair even if not specifically proscribed by some other law. "Because Business and Professions Code section 17200 is written in the disjunctive, it establishes three varieties of unfair competition-acts or practices which are unlawful, or unfair, or fraudulent. 'In other words, a practice is prohibited as "unfair" or "deceptive" even if not "unlawful" and vice versa.'" (Cel-Tech Commc'ns, Inc. v. Los Angeles Cellular Tel. Co. (1999) 20 Cal. 4th 163, 180.)

The basis for this COA is Insurance Code §§ 790.02 and 790.03. Plaintiffs did not cite to any specific subdivision of Ins. Code § 790.03 and based on the facts alleged, that section does not apply,

Plaintiffs allege the unfair practices are violations of Ins. Code §§ 1861.02 and 1861.05. Those code sections do not permit private right of action against an insurer as they are the exclusive jurisdiction of the insurance Commissioner. (Farmers Ins. Exch. v. Superior Ct. (2006) 137 Cal. App. 4th 842, 853–56 ("Farmers").)

Plaintiffs have failed to plead sufficient facts to support this COA. The demurrer is **SUSTAINED** as to this COA with leave to amend.

b) COA No. 2 – Misrepresentation

"The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or

nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (*Lazar v. Superior Court* (1996) 12 Cal. 4th 631, 638.) "In California, fraud must be pled specifically; general and conclusory allegations do not suffice. [Citations.] "Thus ' "the policy of liberal construction of the pleadings ... will not ordinarily be invoked to sustain a pleading defective in any material respect." ' [Citation.] [¶] This particularity requirement necessitates pleading facts which 'show how, when, where, to whom, and by what means the representations were tendered.' "" (*Id.*, at 645.)

The only 'misrepresentation' cited by Plaintiffs, made upon information and belief, is that "pricing is based on the losses and claim expenses of our policyholders." (FAC ¶¶ 9, 16.) In support of this being a false statement, Plaintiffs state Defendants represented to their shareholders they made money due in part to lower claim frequency. (FAC ¶¶ 15, 20.) Plaintiffs paid the increased premiums and were harmed in that increased amount of \$3,439 combined for both policies over the 2025 and 2026 years.

Plaintiffs have not pled sufficient facts to support this COA, including intent to induce reliance and justifiable reliance. Indeed, the FAC states Plaintiffs paid the increased auto premiums before they were told pricing was based on the losses and claim expenses of our policyholders. (FAC ¶¶ 8-9, 19.) The home policy was paid in late 2025, however, the letter cited by Plaintiffs was for the auto policy. There was no reliance upon any statements made by Defendants.

Plaintiffs have failed to plead sufficient facts to support this COA. The demurrer is **SUSTAINED** as to this COA with leave to amend.

c) COA No. 3 – Breach of Duty of Good Faith and Fair Dealing

"There is no obligation to deal fairly or in good faith absent an existing contract. [Citation.] If there exists a contractual relationship between the parties. . . the implied covenant is limited to assuring compliance with the express terms of the contract, and cannot be extended to create obligations not contemplated in the contract." (*Racine & Laramie, Ltd. v. Dep't of Parks & Recreation* (1992)11 Cal. App. 4th 1026, 1032.)

Plaintiffs have alleged two insurance policy contracts; however they pled no facts to support his COA other than potentially that the insurance premiums increased. This is not enough.

Plaintiffs have failed to plead sufficient facts to support this COA. The demurrer is **SUSTAINED** as to this COA with leave to amend.

d) COA No. 4 – Injunction

Plaintiffs request an injunction pursuant to Bus. & Prof. Code § 17203 to enjoin Defendants from increasing premiums on all California homeowner and automobile insurance policies based upon Ins. Code §§ 1861.02 and 1861.05. As noted above, there is no

		private right of action under those insurance code sections as they are the exclusive jurisdiction of the insurance Commissioner. Plaintiffs have failed to plead sufficient facts to support this COA. The demurrer is SUSTAINED as to this COA with leave to amend. B) Motion to Strike Defendants’ motion to strike is MOOT based upon the ruling on the demurrer. Plaintiff is given leave to file an amended complaint within 20 days of written notice of the ruling. Defendants’ objection to the opposition is SUSTAINED as there is no basis of judicial notice of the identified document. Case Management Conference is CONTINUED to October 9, 2026, at 9:30 a.m. Defendants to give notice.
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